

CITY COUNCIL AGENDA ITEM COVER SHEET

DATE OF COUNCIL MEETING: May 05, 2014

TYPE OF DOCUMENT: ☒ ORDINANCE ☐ RESOLUTION ☐ LEASE/CONTRACT)
 ☐ CHANGE ORDER/CONTRACT MODIFICATION) ☐ CONSIDER BID)
 ☐ APPLICATIONS/LICENSES/PERMITS) ☐ APPOINTMENTS)
 ☐ ANNOUNCEMENTS/REPORTS/MOTIONS)

SPONSOR(S) : (ORDINANCES/RESOLUTIONS ONLY) Councilman Jim Brown

EXACT WORDING OF ENTITLEMENT/ITEM; AN ORDINANCE APPROVING AND ESTABLISHING REVISED WATER AND SEWER RATES, TAP AND SYSTEM DEVELOPMENT FEES, ADMINISTRATIVE FEES, SERVICE CHARGES AND PENALTIES AND SEPTIC AND COMMERCIAL WASTE DUMP RATES, AS RECOMMENDED BY THE BOARD OF PUBLIC UTILITIES

(1% Sales Tax Funding/Years _____)
(Other Funding _____) (Grant _____)

CONTACT PERSON: Randy Hays-Administration Manager PHONE: 637-6460 DEPT. BOPU

OTHER CITY DEPTS AFFECTED: _____

OTHER GOV'T AGENCIES AFFECTED: _____

FINANCIAL IMPACT PROPOSED OR CONDITIONS WHICH AFFECT CITY: Increase of Revenue to the Board of Public Utilities based on the Bureau of Labor Statistics, Consumer Price Index, All Urban Consumers, Water and Sewer Maintenance for the calendar year 2013 was 3.86%, the Wyoming Cost Living Index - Southeast Region for the fourth quarter of 2013 was 3.4%, and the Engineering News Record Construction Cost Index (ENR CCI), which from July 2012 to July 2013 was 3.40%.

CONTRACT TERM: _____ STARTING DATE: _____

	YES	NO	N/A
Is funding budgeted?	()	()	()
Were Bids called for?	()	()	()
Affected parties notified of Council procedure & dates?	()	()	()
Has bond, insurance or other security been arranged?	()	()	()
Have legal descriptions been checked?	()	()	()

Agenda item reviewed and/or approved by:

Risk Mgr () City Attorney (x) Dept. Head ()

General Comments: That prior to the beginning of each fiscal year, the BOARD will calculate new rates for Water and Sewer services based on the Bureau of Labor Statistics, Consumer Price Index, All Urban Consumers, Water and Sewer Maintenance and the Wyoming Cost Living Index - Southeast Region and prepare new rate schedules for Water and Sewer services that shall be presented, in the form of an ordinance, to the Governing Body.

Submitted by: Randy Hays Title: Administration Manager - BOPU Date: May 05,
2014

UPON PASSAGE OF THIS AGENDA ITEM, COPIES SHOULD BE SENT TO:

Randy Hays - BOPU
Timothy E. Wilson - BOPU

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE APPROVING AND ESTABLISHING REVISED WATER AND SEWER RATES, TAP AND SYSTEM DEVELOPMENT FEES, ADMINISTRATIVE FEES, SERVICE CHARGES AND PENALTIES, AND SEPTIC AND COMMERCIAL WASTE DUMP RATES, AS RECOMMENDED BY THE BOARD OF PUBLIC UTILITIES"

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That, pursuant to WYO. STAT. §15-7-407, the Board of Public Utilities ("BOARD") shall fix the rates for water and sanitary sewer services furnished to customers, and any revision thereof is subject to the governing body's review, modification and approval.

Section 2. That the BOARD is authorized by State Statute and City Code to set rates, fees and penalties for water and sanitary sewer services furnished to customers to:

- (a) Pay for the operation and maintenance of the water system, including salaries, wages and benefits, and the cost of all materials and supplies necessary for repairs, replacements and upgrades to the system;
- (b) Pay interest charges and principal payments on all outstanding water loans and bonds as they are due;
- (c) Cover all miscellaneous expenses;
- (d) Cover all usual extensions and enlargements, together with a reasonable allowance for emergency and unforeseen expenses; and
- (e) Provide and maintain a depreciation fund for the water department.

Section 3. That the Board has determined that an increase in the water rates is necessary to ensure adequate revenue is generated in order to pay for costs associated with those services rendered.

Section 4. That, pursuant to City Code Section 13.04.140, rates and charges for the consumption of city utility services, charges and fees for connections, inspections, penalties, shutoff penalties and meter installations shall be established by the BOARD, approved by the Governing Body and filed with the City Clerk and business office of the Board.

Section 5. That pursuant to City Ordinances 3975 adopted June 10, 2013, prior to the beginning of each fiscal year the BOARD will calculate new rates for water and sewer services based on the Bureau of Labor Statistics, Consumer Price Index, All Urban Consumers, Water and Sewer Maintenance and the Wyoming Cost Living Index – Southeast Region and prepare new rate schedules for Water and Sewer services.

Section 6. That the Bureau of Labor Statistics, Consumer Price Index, All Urban Consumers, Water and Sewer Maintenance for the calendar year 2013 was 3.86%, the Wyoming Cost Living Index – Southeast Region for the fourth quarter of 2013 was 3.4%, and the Engineering News Record Construction Cost Index, from July 2012 to July 2013, was 3.40%.

Section 7. That the BOARD established by Resolution No. 2014-04, adopted May 05, 2014, revised Water rates to be charged to users of the Cheyenne Water System as shown and set forth on the resolution attached hereto as Exhibit A.

Section 8. That the BOARD established by Resolution No. 2014-05, adopted May 05, 2014, revised Sewer rates to be charged to users of the Cheyenne Sewer System as shown and set forth on the resolution attached hereto as Exhibit B.

Section 9. That the BOARD established by Resolution No. 2014-06, adopted May 05, 2014, revised Water and Sewer Connections Fees, System Development Fees, Pump Station Development Fees, and Related Fees set by the Board of Public Utilities as shown and set forth on the resolution attached hereto as Exhibit C.

Section 10. That the BOARD established by Resolution No. 2014-07, adopted May 05, 2014, revised Administrative fees, Service charges and Penalties set by the Board of Public Utilities as shown and set forth on the resolution attached hereto as Exhibit D.

Section 11. That the BOARD established by Resolution No. 2014-08, adopted May 05, 2014, revised Septic Waste Dump and Commercial Waste Rates to be charged to the user of the Cheyenne Water and Sewer Systems as shown and set forth on the resolution attached hereto as Exhibit E.

Section 12. That the Governing Body has reviewed the rates, charges and fees established by the BOARD for water and sewer services and hereby approves the water and sewer rate schedules attached hereto.

Section 13. That prior to the beginning of each fiscal year, the BOARD will calculate new rates for Water and Sewer services based on the Bureau of Labor Statistics, Consumer Price Index, All Urban Consumers, Water and Sewer Maintenance and the Wyoming Cost Living Index – Southeast Region and prepare new rate schedules for Water and Sewer services that shall be presented, in the form of an ordinance, to the Governing Body.

Section 14. That this ordinance shall be in full force and effect upon its passage and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

RICHARD L. KAYSEN, MAYOR

(SEAL)

ATTEST:

CAROL INTLEKOFER, CITY CLERK



Approved as to
form only:
HR
Date: 4-28-14

BOPU RESOLUTION NO. 2014- 04

ENTITLED: "A RESOLUTION ADOPTING REVISED WATER RATES TO BE CHARGED TO USERS OF THE CHEYENNE WATER SYSTEM."

WHEREAS, the Board of Public Utilities ("Board") is authorized by State Statute and City Code to set rates, fees and penalties for water and sanitary sewer services furnished to customers to:

- (a) Pay for the operation and maintenance of the water system, including salaries, wages and benefits, and the cost of all materials and supplies necessary for repairs, replacements and upgrades to the system;
- (b) Pay interest charges and principal payments on all outstanding water loans and bonds as they are due;
- (c) Cover all miscellaneous expenses;
- (d) Cover all usual extensions and enlargements, together with a reasonable allowance for emergency and unforeseen expenses; and
- (e) Provide and maintain a depreciation fund for the water department;

WHEREAS, the Board has determined that an increase in the water rates is necessary to ensure adequate revenue is generated in order to pay for costs associated with those services rendered;

WHEREAS, the Governing Body of the City of Cheyenne, pursuant to Ordinance 3975, adopted June 10, 2013, requires that prior to the beginning of each fiscal year, the Board will calculate new water rates, service charges, penalties and miscellaneous charges based on the Bureau of Labor Statistics, Consumer Price Index, All Urban Consumers, Water and Sewer Maintenance and the Wyoming Cost Living Index – Southeast Region and prepare a new Water rate schedule;

WHEREAS, the Bureau of Labor Statistics, Consumer Price Index, All Urban Consumers, Water and Sewer Maintenance for the calendar year 2013 was 3.86% and the Wyoming Cost of Living Index – Southeast Region for the fourth quarter of 2013 was 3.4%; and

WHEREAS, the 2013 Board of Public Utilities Water and Wastewater Master Plans recommend a 4% adjustment for water rates for fiscal year 2015.

NOW, THEREFORE, BE IT RESOLVED that the Water rate schedule will be adjusted approximately 3.5% effective January 1, 2015.

BE IT FURTHER RESOLVED that the following Water Rate Schedule is adopted by the Board, and that it be presented in the form of an ordinance to the Governing Body of the City of Cheyenne for approval, to become effective on consumption and bills issued on or after the dates indicated below on the water rate schedule:

WATER RATE SCHEDULE

Effective with metered consumption after November 01, 2014 on bills issued on or after the date indicated:

<u>Meter Size</u>	<u>January 1, 2015 Monthly Service Fee</u>	<u>January 1, 2014 Monthly Service Fee</u>
5/8 In. & 3/4 In.	\$ 5.34	\$ 5.16
1 In.	6.79	6.57
1 1/4 In. & 1 1/2 In.	10.80	10.44
2 In.	13.45	13.01
3 In.	52.35	50.62
4 In.	62.31	60.26
6 In.	81.01	78.35
8 In.	105.92	102.44
10 In.	137.04	132.54
12 In.	181.82	175.84

Service Fee: The monthly service fee is charged in addition to the charge per 1,000 gallons. This service fee is based upon the size of the water meter. The monthly service fee for outside city users will be 1.5 times the above rates.

	<u>January 1, 2015 Volume Rate Charge Per 1,000 Gallons</u>	<u>January 1, 2014 Volume Rate Charge Per 1,000 Gallons</u>
Residential Single Family Structure (in-city)		
First Block First 6,000	\$ 3.85	\$3.72
Second Block Next 18,000	4.77	4.61
Third Block Next 18,000	5.91	5.72
All Over 42,000	7.36	7.11

Residential Multifamily Structure (in-city)			
First Block	First 3,000 per unit	\$3.85	\$3.72
Second Block	Next 9,000 per unit	4.77	4.61
Third Block	Next 9,000 per unit	5.91	5.72
All Over	21,000 per unit	7.36	7.11
Commercial / Industrial		\$4.43	\$4.28
South Cheyenne Water & Sewer District		4.43	4.28
F.E. WAFB		4.43	4.28
Large volume Industrial / Commercial		4.23	4.08
Irrigation - Treated Water		4.97	4.81
Irrigation - Raw Water including WAFB		2.49	2.41
Reclaimed Water		2.02	1.95
Recycled Water		3.60	3.48
Treated Water Fill Station		6.63	6.41

* The volume rate charge for all outside city customers will be 1.5 times the above rates.

Multifamily residential unit: Defined as a residential building with two or more, separate and distinct, residences (for example duplex, triplex, four-plex, etc.) where water to the building is measured through a single meter.

Large Volume Industrial User: Defined as a user whose treated water demand is equal to or exceeds 1 million gallons a day ("mgd") and whose demand upon the treated water system is constant on a day-to-day basis.

Raw water: Defined as surface water, which is not treated by the Board's water treatment plants.

Reclaimed water: Defined as water released from the Board's wastewater treatment plants or water released from the water treatment plant that is not recycled.

Recycled water: Defined as water released from the Board's water reclamation plant that has also received tertiary treatment.

BE IT FURTHER RESOLVED that the following rates be charged for the purpose of mineral exploration in Laramie County and other portions of Southeast Wyoming:

	January 1, 2015 Volume Rate Charge <u>Per 1,000 Gallons</u>	January 1, 2014 Volume Rate Charge <u>Per 1,000 Gallons</u>
Oil – Treated Water	\$14.71	\$14.23
Oil – Recycled Water	10.35	10.01
Oil – Raw Water	8.06	7.80
Oil – Reclaimed Water	5.78	5.59

BE IT FURTHER RESOLVED that the Board is authorized to negotiate contracts with water system users, based upon the above rates and any revision of the above rates shall be subject to Governing Body review, modification and approval.

BE IT FURTHER RESOLVED that the Board is authorized to negotiate contracts and rates with commercial and/or industrial users, whose demand exceeds 500,000 gallons per day for the sale of raw water and/or reclaimed water. Said contracts and rates shall be subject to Governing Body approval.

BE IT FURTHER RESOLVED that the fees established by the Board be submitted to the Governing Body of the City of Cheyenne for approval and filing as provided by the Code of the City of Cheyenne, Wyoming

ADOPTED this 5th day of May, 2014.

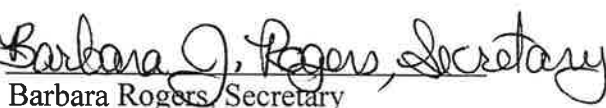
BOARD OF PUBLIC UTILITIES

BY:


Joe Bonds, President

(SEAL)

ATTEST:

BY: 
Barbara Rogers, Secretary



Approved as to
form only:

JHR
Date: 4.28.14

BOPU RESOLUTION NO. 2014- 05

ENTITLED: "A RESOLUTION ADOPTING REVISED SEWER RATES TO BE CHARGED TO USERS OF THE CHEYENNE SEWER SYSTEM."

WHEREAS, the Board of Public Utilities ("Board") is authorized by State Statute and City Code to set rates, fees and penalties for water and sanitary sewer services furnished to customers to:

- (a) Pay for the operation and maintenance of the sanitary sewer system, including salaries, wages and benefits, and the cost of all materials and supplies necessary for repairs, replacements and upgrades to the system;
- (b) Pay interest charges and principal payments on all outstanding sewer loans and bonds as they are due;
- (c) Cover all miscellaneous expenses;
- (d) Cover all usual extensions and enlargements, together with a reasonable allowance for emergency and unforeseen expenses; and
- (e) Provide and maintain a depreciation fund for the sewer department;

WHEREAS, the Board has determined that an increase in the sewer rates is necessary to ensure adequate revenue is generated in order to pay for costs associated with those services;

WHEREAS, the Governing Body of the City of Cheyenne, pursuant to Ordinance 3975, adopted June 10, 2013, requires that prior to the beginning of each fiscal year, the Board will calculate new Sewer rates, service charges, penalties and miscellaneous charges based on the Bureau of Labor Statistics, Consumer Price Index, All Urban Consumers, Water and Sewer Maintenance and the Wyoming Cost of Living Index – Southeast Region and prepare a new Sewer fee schedule;

WHEREAS, user charges for contributors shall be based on requirements to adequately fund Operation & Maintenance, Capital Equipment, Infrastructure replacement and improvement, and debt service expenditures;

WHEREAS, residential user charges for contributors connected to city sewer may be based on the user's average monthly water consumption as determined by water meter readings taken in January, February and March of each year or based on the actual metered water use each month;

WHEREAS, user charges for industrial and commercial contributors shall be based on water used each month. If an industrial or commercial contributor uses water which is not returned to the wastewater collection system, the user charge for that contributor may be based on a wastewater meter or meters or a water meter or meters installed and maintained at the contributor's expense, or any other method acceptable to the Board;

WHEREAS, the Bureau of Labor Statistics, Consumer Price Index, All Urban Consumers, Water and Sewer Maintenance for the calendar year 2013 was 3.86% and the Wyoming Cost of Living Index – Southeast Region for the fourth quarter of 2013 was 3.4%;

WHEREAS, the 2013 Water and Wastewater Master Plans recommend a 5.5% adjustment to sewer rates in order to adequately fund Operation & Maintenance, Capital Equipment, Infrastructure replacement and improvement, and debt service expenditures;

WHEREAS, the estimated construction cost of the Phase I Southern Sewer Interceptor Main Project is \$10,500,000 according to 2013 Water and Wastewater Master Plans and a sewer rate increase needed to repay a \$10,500,000 loan at 2.5% over 20 years is approximately \$.31 per 1,000 gallons; and

WHEREAS, the Board has determined that an additional sewer rate increase of \$.11 per 1,000 gallons is necessary to pay for, in part, the annual principal and interest charges on a loan for infrastructure improvements related to the Phase I Southern Sewer Interceptor Main Project.

NOW, THEREFORE, BE IT RESOLVED that the sewer rate schedule will be adjusted by approximately 5.0% and by an additional \$.11 per 1,000 gallons to pay for debt related to the Phase I Southern Sewer Interceptor Main Project.

BE IT FURTHER RESOLVED that the following Sewer Rate Schedule is adopted by the Board, and that it be presented in the form of an ordinance to the Governing Body of the City of Cheyenne for approval, to become effective on consumption and bills issued on or after the dates noted below on the Sewer rate schedule:

SEWER RATE SCHEDULE

Effective with metered consumption after November 01, 2014 on bills issued on or after the date indicated:

<u>Meter Size</u>	<u>January 1, 2015 Monthly Service Fee</u>	<u>January 1, 2014 Monthly Service Fee</u>
5/8 In. & 3/4 In.	\$ 4.48	\$ 4.27
1 In.	5.19	4.94
1 1/4 In. & 1 1/2 In.	6.36	6.06
2 In.	8.97	8.54
3 In.	12.79	12.18
4 In.	18.00	17.14
6 In.	30.70	29.24
8 In.	46.05	43.86
10 In.	61.40	58.48
12 In.	76.76	73.10

Service Fee: The monthly service fee is charged in addition to the charge per 1,000 gallons. This service fee is based upon the size of the Sewer meter. The monthly service fee for outside city users will be 1.5 times the above rates.

	(\$.11/1,000 gallons) January 1, 2015 Volume Rate Charge <u>Per \$1,000 Gallons</u>	(5.0% inc.) January 1, 2015 Volume Rate Charge <u>Per 1,000 Gallons</u>	(Current) January 1, 2014 Volume Rate Charge <u>Per 1,000 Gallons</u>
Residential	\$4.21	\$4.10	\$3.91
Commercial / Industrial	\$4.21	4.10	3.91
South Cheyenne Sewer & Sewer District	\$4.21	4.10	3.91
F.E. WAFB	\$4.21	4.10	3.91
Large volume Industrial / Commercial	\$4.21	4.10	3.91

BE IT FURTHER RESOLVED that whenever the Biochemical Oxygen Demand concentration exceeds 350mg/l the sewage use rate shall be increased by \$.45 per pound of waste and whenever the Total Suspended Solids concentration exceeds 700 mg/l the sewage rate shall be increased by \$.36 per pound of waste.

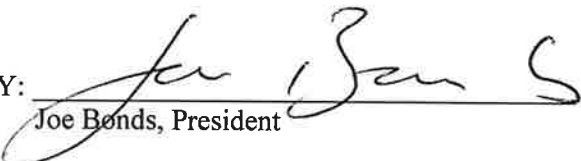
BE IT FURTHER RESOLVED that outside city customers, unless specifically identified above, will be charged 1.5 times the above rates.

BE IT FURTHER RESOLVED that the Board is authorized to negotiate contracts with sewer system users based upon the above rates and any revision of the above rates shall be subject to Governing Body review, modification and approval.

BE IT FURTHER RESOLVED that the fees established by the Board be submitted to the Governing Body of the City of Cheyenne for approval and filing as provided by the Code of the City of Cheyenne, Wyoming.

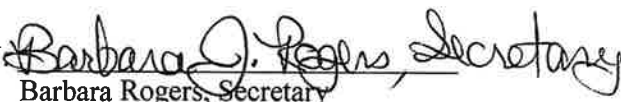
ADOPTED this 5th day of May, 2014.

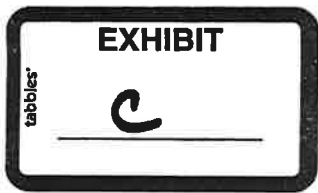
BOARD OF PUBLIC UTILITIES

BY: 
Joe Bonds, President

(SEAL)

ATTEST:

BY: 
Barbara Rogers, Secretary



Approved as to
form only:

11/12
Date: 7-28-14

BOPU RESOLUTION NO. 2014 - 06

ENTITLED: "A RESOLUTION APPROVING REVISED WATER AND SEWER CONNECTION FEES, SYSTEM DEVELOPMENT FEES, PUMP STATION DEVELOPMENT FEES, AND RELATED FEES SET BY THE BOARD OF PUBLIC UTILITIES."

WHEREAS, the Board of Public Utilities ("BOARD") has exclusive authority to manage, operate, maintain and control the Cheyenne Municipal Waterworks, Sanitary Sewage System and Water Reclamation Facilities of the City and to make all rules and regulations necessary for the safe, economical and efficient operation and maintenance of the above facilities; and

WHEREAS, the Board has determined that an increase in the fees is necessary to pay for costs associated with: the new connectors share of the water and sewer systems; water and sewer development; water and sewer debt service; over-sizing certain water and sewer mains; and the expansion to the water and sewer systems; and

- WHEREAS, the BOARD desires to set the fees to secure an income sufficient to:
- (a) Pay for costs associated with the water and sewer installations;
 - (b) Recover costs and reduce debt associated with water and sewer development and expansion for new connectors to the City's water and sewer system; and
 - (c) Pay for costs associated with the water and sewer over-sizing and extensions; and

WHEREAS, the Governing Body of the City of Cheyenne, pursuant to Ordinance 3975, adopted June 10, 2013, requires that prior to the beginning of each fiscal year, the Board will calculate new tap (connection) fees, system development fees, pump station development fees, and other related fees based on the Bureau of Labor Statistics, Consumer Price Index, All Urban Consumers, Water and Sewer Maintenance and the Wyoming Cost of Living Index – Southeast Region and prepare a new fee schedule for the tap (connection) fees, system development fees, pump station development fees, and other related fees; and

WHEREAS, the Bureau of Labor Statistics, Consumer Price Index, All Urban Consumers, Water and Sewer Maintenance for the calendar year 2013 was 3.86% and the Wyoming Cost of Living Index – Southeast Region for the fourth quarter of 2013 was 3.4%; and

WHEREAS, the 2013 Water and Wastewater Master Plans include a recommendation that adjustments to Connection and System Development Fees should include a provision to adjust fees based upon changes to the Engineering News Record Construction Cost Index (ENR CCI), which, from July 2012 to July 2013, was 3.40%.

NOW, THEREFORE, BE IT RESOLVED that the Water and Sewer Connection Fees, System Development Fees, Pump Station Development Fees, and Related Fees rate schedule will be adjusted by approximately 3.4% or as noted.

BE IT FURHTER RESOLVED that the following Schedule of Water and Sewer Connection Fees, System Development Fees, Pump Station Development Fees, and Related Fees is adopted by the BOARD, and that it shall be presented in the form of an ordinance to the Governing Body of the City of Cheyenne for approval, and upon approval will become effective on the dates indicated below:

Water Connection Fee Based upon the following Size – Connection Not Installed by BOPU:

<u>Size</u>	<u>July 1, 2014</u>	<u>January 1, 2014</u>
3/4"	\$ 260.00	\$ 254.00
1"	275.00	299.00
1 1/2"	290.00	666.00
2"	305.00	966.00

Water Connection Fee Based upon the following Size – If Connection installed by BOPU:

<u>Size</u>	<u>January 1, 2015</u>	<u>January 1, 2014</u>
3"	\$ 2,864.00	\$ 2,770.00
4"	2,991.00	2,893.00

6"	3,486.00	3,372.00
8"	4,234.00	4,095.00
10"	5,604.00	5,420.00
12"	7,005.00	6,755.00

Water System Development Fee-Single Family Residential:

<u>Size</u>	<u>January 1, 2015</u>	<u>January 1, 2014</u>
3/4"	\$ 6,110.00	\$ 5,909.00
1"	11,690.00	11,306.00
1 ½"	22,785.00	22,036.00
2"	40,659.00	39,322.00

Water System Development Fee-Multi-Family or a Multi-Unit Complex:

<u># of Units</u>	<u>Fee per Unit January 1, 2015</u>	<u>Fee per Unit January 1, 2014</u>
First 4	\$ 2,760.00	\$ 2,669.00
Next 8	1,839.00	1,779.00
Next 52	1,136.00	1,099.00
Over 64	561.00	543.00

Water System Development Fee-Commercial/Industrial User:

<u>Size</u>	<u>January 1, 2015</u>	<u>January 1, 2014</u>
3/4"	\$ 6,880.00	\$ 6,654.00
1"	16,928.00	16,371.00
1 1/2"	39,679.00	38,374.00
2"	60,831.00	58,831.00
3"	129,571.00	125,311.00
4"	321,288.00	310,724.00

Water System Development Fee – Large Commercial/Industrial User:

<u>Factor</u>	<u>Amount GPD</u>	<u>January 1, 2015 Multiplier \$</u>	<u>January 1, 2014 Multiplier \$</u>
Base Demand =	_____	\$ 12.40*	\$12.00*
Maximum Day Demand =	_____	\$ 4.88**	4.72**
Peak Hour Demand =	_____	\$ 0.16***	.30**

*Per gallon per day average day demand

**Per gallon per day Maximum day demand (excess of Base Demand)

***Per gallon per day Maximum hour demand (excess of Maximum Day Demand)

Water Pump Station Fee based upon the following connection size:

<u>Size</u>	<u>January 1, 2015</u>	<u>January 1, 2014</u>
3/4"	\$ 1,495.00	\$ 1,446.00
1"	2,370.00	2,292.00
1 1/2"	4,565.00	4,417.00
2"	7,374.00	7,132.00
3"	16,766.00	16,215.00
4"	27,918.00	27,000.00
6"	66,176.00	64,000.00
8"	117,037.00	113,189.00
10"	185,650.00	179,546.00
12"	271,617.00	262,686.00

Sewer Connection Fee:

Water Connection

<u>Size</u>	<u>January 1, 2015</u>	<u>January 1, 2014</u>
All Sizes	\$ 105.00	\$ 105.00

¾" to 12" The above fee is charged for each connection to the sewer system.

Sewer System Development Fee-Single Family Residential:**Water Connection**

<u>Size</u>	<u>January 1, 2015</u>	<u>January 1, 2014</u>
¾"	\$ 1,529.00	\$ 1,479.00
1"	2,692.00	2,603.00
1 ½"	7,117.00	6,883.00
2"	11,437.00	11,061.00

Sewer System Development Fee-Multi-Family or a Multi-Unit Complex:

<u># of Units</u>	<u>Fee per Unit January 1, 2015</u>	<u>Fee per Unit January 1, 2014</u>
First 4	\$ 758.00	\$ 733.00
Next 8	551.00	533.00
Next 52	332.00	321.00
Over 64	171.00	166.00

Sewer System Development Fee-Commercial/Industrial User:**Water Connection**

<u>Size</u>	<u>January 1, 2015</u>	<u>January 1, 2014</u>
¾"	\$ 2,254.00	\$2,180.00
1"	5,292.00	5,118.00
1 ½"	12,439.00	12,030.00
2"	19,838.00	19,186.00
3"	35,698.00	34,524.00
4"	70,095.00	67,791.00

Sewer System Development Fee-For Large Commercial/Industrial User:

<u>Factor</u>	<u>Amount GPD or PPD</u>	<u>January 1, 2015 Multiplier \$</u>	<u>January 1, 2014 Multiplier</u>
Wastewater Volume = _____		\$ 4.59*	\$ 4.44*
Biochemical Oxygen Demand = _____		\$ 940.00**	\$ 910.00**
Total Suspended Solids = _____		\$ 940.00**	\$ 910.00**

* Per gallon per day average day flow

** Per pounds per day average day demand

Schedule of Related Fees:

	<u>January 1, 2015</u>	<u>January 1, 2014</u>
Engineering/Connection Inspection Fee (per hour)\$	56.00	\$ 55.00
Eng./Connect Inspection Overtime (per hour)	85.00	83.00
Construction Water	36.50	35.50
Penalty for Taking Water Without Tap Permit	540.00	540.00
Penalty for Irrigating Without a Water Meter	540.00	540.00

BE IT FURTHER RESOLVED that:

1. The applicant/contractor/developer shall pay all fees due prior to the issuance of a tap/connection permit ("PERMIT"), except for system development fees which may be paid at either the time of issuance of a PERMIT or prior to the issuance of a building permit. The fees due shall be the amount of the fee in effect at the time payment is received.
2. Under no circumstance will the City of Cheyenne be allowed to issue a building permit prior to the payment of all fees due the Board, including system development fees. The applicant for a city building permit will be required to furnish proof to the City that all required fees have been paid to the BOARD, including the system development fees.
3. The applicant for the PERMIT shall remain liable to the BOARD for payment of all system development fees, without regard to subsequent assumption of payment responsibility by another party.

4. In no event shall water service be provided to the property before all fees, including system development fees, are paid in full.
5. If no building permit is required, then the applicant/contractor/developer shall pay all fees, including system development fees, before the issuance of a PERMIT.

For All Water Connections:

The applicant/contractor/developer shall be responsible for:

1. Submitting a plumbing plan identifying service from the water main to the meter, prior to commencement of work. This plan will be submitted in duplicate for BOARD approval. The BOARD will retain one plan and one will be returned to the applicant.
2. Proper street cuts, excavation, trench boxes, OSHA approved safety setups, backfill, base course, compaction plus asphalt and concrete replacement and other construction costs. (Note: BOARD employees will not access areas that do not fully comply with OSHA approved safety standards. If complications arise during the tapping process and BOARD personnel are required to assist or re-inspect, the applicant will be billed for the additional expenses incurred.)
3. Installation of wiring for a remote readout meter.
4. Notifying the BOARD prior to any lawn irrigation. (The water tap fee does not include water for irrigation of lawns.)
5. Paying for all irrigation water.
6. Paying a penalty as described in the Schedule of Related Fees for failure to comply with any of the requirements contained in this Resolution.

For Water Connections ¾", 1" 1½" and 2":

The applicant/contractor/developer shall be responsible for:

7. Providing all materials, labor and equipment necessary for the installation of the tap. Materials include, but are not limited to, the corporation, tapping saddle and if required the insulator coupling.
8. The proper installation of all material. These items must be installed at the address and location and in the manner specified on the plan and permit. If the corporation and coupling are not properly installed or not in accordance with permit designation, then the applicant will be responsible for immediate removal and/or repair. (See City of Cheyenne & Board of Public Utilities Construction Specifications and Standard Drawings - 2014.)

For Water Connections 2" and larger:

The applicant/contractor/developer shall be responsible for:

9. The installation of a 5' manhole meter pit, with ring and lid.
10. All excavation and back filling

The water connection fees for ¾ inch, 1 inch, 1½ inch, and 2 inch water connections include administrative fees (inspection fee, account fee, construction water fee and cost of installing the ARB remote meter readout).

The water connection fees for water connections larger than 2 inch include the cost of material (tapping sleeve, tapping saddle, tapping valve, corporation stop, insulator coupling, valve box, valve box extension, one cubic yard concrete thrust block), labor and equipment to install the material, and the administrative fees (inspection fee, account fee, construction water fee and cost of installing the ARB remote meter readout).

The sewer connection fee includes the engineering fee for inspection and the sewer account fee.

System Development Fees:

Water connections for fire lines and main line extensions are exempt from system development fees.

Connections to the wastewater effluent system and/or the recycle water system are assessed system development fees based upon the water system development fee schedules.

Water Pump Station Development Fees:

For water connections issued within the designated Pump Station Water Service Area, the BOARD will collect the Water Pump Station Development Fee according to the fee schedule.

For connections to the wastewater and/or the recycle water systems within the designated Pump Station Service Area for those systems, the BOARD will collect a Water Pump Station Development Fee according to the fee schedule. The PERMIT applicant, in lieu of having to enlarge the pump station capacity, will pay this fee.

The applicant must pay the fee at the time the PERMIT is issued. (See attached map for Northwest Cheyenne water service areas.) Funds collected will be used to construct or enlarge a pump station in the Northwest Cheyenne water service area.

The Pump Station Development Fee will also be paid for undeveloped lands and lots currently annexed to the City of Cheyenne that have a restriction by the BOARD that the water pump station capacity must be enlarged. The PERMIT applicant, in lieu of having to enlarge the pump station capacity, will pay this fee.

The following lands and lots located inside the Pump Station Service Water Area are exempt from the pump station development fee:

1. Lands and lots already annexed to the City of Cheyenne with no pump station capacity enlargement restrictions by the BOARD.
2. Lands and lots currently annexed or not annexed to the City of Cheyenne with a restriction by the BOARD stating that the pump station capacity must be enlarged by the owner and the pump station capacity has been enlarged to the BOARD's satisfaction.

For connections to the wastewater and/or the recycle water systems that are served by a Pump Station, the BOARD will collect a Water Pump Station Development Fee according to the fee schedule. The PERMIT applicant, in lieu of having to enlarge the pump station capacity, will pay this fee.

BE IT FURTHER RESOLVED that all water and sewer connections and service connections within the boundaries of Warren Air Force Base will be charged the established in-city rates.

BE IT FURTHER RESOLVED that all taps and service connections outside the City limits will be charged 1.5 times for all the above fees, charges and penalties.

BE IT FURTHER RESOLVED that the Board is authorized to negotiate contracts with water and sewer system users, based upon the above rates for water and sewer connections, system development fees, pump station development fees, and other related fees and that any revision of the above rates shall be subject to Governing Body review, modification and approval.

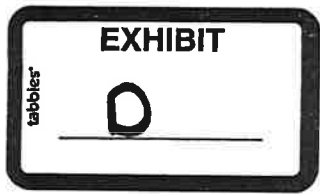
BE IT FURTHER RESOLVED that the foregoing fees, charges and penalties established by the BOARD be submitted to the City Council for approval and filing as provided by the Code of the City of Cheyenne.

ADOPTED THIS 5th DAY OF May, 2014.

BY Joe Bonds
Joe Bonds, President

(SEAL)

BY Barbara J. Rogers, Secretary
Barbara Rogers, Secretary



Approved as to
form only:

Date: 7-28-14

BOPU RESOLUTION NO. 2014- 07

ENTITLED: "A RESOLUTION APPROVING REVISED ADMINISTRATIVE FEES, SERVICE CHARGES AND PENALTIES SET BY THE BOARD OF PUBLIC UTILITIES."

WHEREAS, the Board of Public Utilities ("Board") is authorized by State Statute and City Code to set rates, fees and penalties for water and sanitary sewer services furnished to customers;

WHEREAS, the Board has determined that an increase in the administrative fees, service charges and penalties is necessary to ensure adequate revenue is generated in order to pay for costs associated with those water and sewer services rendered;

WHEREAS, pursuant to City Code Section 13.04.140, rates and charges for the consumption of city utility services, charges and fees for connection thereto, inspections, penalties, shutoff penalties and meter installations are established by the Board, approved by the Governing Body and filed with the City Clerk and business office of the Board;

WHEREAS, the Governing Body of the City of Cheyenne, pursuant to Ordinance 3975, adopted June 10, 2013, required that prior to the beginning of each fiscal year, the Board of Public Utilities will calculate new administration fees, services charges and penalties based on the consumer price index and prepare a new fee schedule; and

WHEREAS, the Bureau of Labor Statistics, Consumer Price Index, All Urban Consumers, Water and Sewer Maintenance for the calendar year 2013 was 3.86% and the Wyoming Cost of Living Index – Southeast Region for the fourth quarter of 2013 was 3.4%.

NOW, THEREFORE, BE IT RESOLVED that the administrative fees, service charges and penalties fee schedule will be adjusted by approximately 3.4%.

BE IT FURTHER RESOLVED that the following fee schedule for administrative fees, service charges and penalties is adopted by the Board, and that it shall be submitted to the Governing Body of the City of Cheyenne for approval to become effective January 1, 2015.

Administrative Fees, Service Charges and Penalties		
	Effective January 1, 2015	Effective January 1, 2014
Administration:		
Late Payment Penalty	\$2.85	\$2.85
(Charged accounts receiving a delinquency notice)		
Field Collection Charge/Trip Charge	\$14.85	\$14.40
Water Service Disconnect and/or Reconnect Fees*:		
During Office Hours	\$29.90	\$28.95
After Office Hours	\$44.85	\$43.40
*(Fee to disconnect or reconnect water service for nonpayment or inability to obtain a meter reading)		
ISF Checks or Returned Checks	\$30.00	\$30.00
Violations of Wise Water Use Plan and/or Conservation Program		
1st Violation (Warning)	\$0	\$0
2nd Violation	\$410.00	\$410.00
3rd Violation	\$680.00	\$680.00
Subsequent Violations (each)	\$680.00	\$680.00
Penalty for violation of Unlawful Use Code (City code 13.04.110 Unlawful Use)	\$540.00	\$540.00
Photocopies (B & W))	\$.33	\$.32
Photocopies (Color)	\$.40	
Fax Transmissions		
Inbound	\$.80	\$.78
Outbound	\$1.30	\$1.29
Production and/or Duplication of Electronic Records or Recordings	\$11.60 / hour	\$11.25 / hour
Special Project Research	\$17.75 / hour	\$17.20 / hour
Special Computer Runs/Listings	\$64.00	\$62.00

Engineering:		
Inspection Fee (per hour)	\$56.00	\$55.00
Inspection Fee (per hour) – Overtime	\$85.00	\$83.00
Construction Water	\$36.50	\$35.50
Penalty for connection to System Without Permit	\$540.00	\$540.00
Penalty for Irrigating without a meter	\$540.00	\$540.00
Penalty for removing a meter w/o permission	\$540.00	\$540.00
Common User Service Application Fee	\$120.00	\$117.00
Outside User Agreement Application Fee	\$299.00	\$290.00
Utility Plan Review Fee (per plan & profile)	\$66.00	\$64.00
Paper Copy of Water and Sewer Maps	\$432.00	\$418.00
Paper Copy of Water Maps	\$255.00	\$247.00
Paper Copy of Sewer Maps	\$204.00	\$198.00
Electronic Copy of Water and Sewer Maps	\$194.00	\$188.00
Electronic Copy of Water Maps	\$132.00	\$128.00
Electronic Copy of Sewer Maps	\$111.00	\$108.00
Upgrade and Swap of Electronic Copy of Maps	\$28.50	\$27.75
Bid Documents/Specifications	\$37.00	\$36.00
Bid-Plans/Drawings	\$37.00	\$36.00
Oil Exploration Deposit	\$10,690.00	\$10,340.00
Operations and Maintenance:		
Meter Installation/Removal Fee	\$51.00	\$49.50
Meter Installation/Removal Fee – Overtime	\$76.50	\$75.50
Meter Inspection Testing Fee	\$29.50	\$28.75
Jet Truck Assistance to Contractors/Plumbers	\$240/hour	\$233.00/hour
Camera Van Assistance to Contractors/Plumbers	\$240/hour	\$233.00/hour
Sewer Blockage/Backup Fee	Actual Cost	Actual Cost
Water Distribution Damage Repair Fee	Actual Cost	Actual Cost
Damaged Meter - Frozen/Vandalized- 3/4"	Actual Cost	Actual Cost
Damaged Meter - Frozen/Vandalized- 1"	Actual Cost	Actual Cost
Repeat Frozen Meter Calls	\$51.50	\$50.00
Construction Fire Hydrant Meter Deposit	\$1,805.00	\$1,745.00
(This is the sum of two following itemized deposits. Damage to a hydrant and/or failure to report water consumption could result in forfeiture of all or part of this deposit)		
Construction Meter Only Damage Deposit	\$1,039.00	\$1,005.00
Backflow Device and Equip Damage Deposit Only	\$713.00	\$690.00
Spanner Wrench	\$29.50	\$28.75
Fire Hose (2 1/2 X 6)	\$74.00	\$72.00
2" Auxiliary Valves & Adapters	\$120.00	\$117.00
2" Back Flow Device & Adapters	\$518.00	\$501.00
Construction Hydrant Meter Fees and Charges		
Permit and Handling Fee	\$36.00	\$35.00
Meter Rental Per Day	\$9.00	\$8.75
Water Consumption (per thousand gallons)	\$4.97	\$4.60
Penalty for taking water from Hydrant w/o Hydrant Meter/Backflow or proper Hydrant Permit	\$540.00	\$540.00
Purchase of old Hydrants - (unserviceable)	\$25.85	\$25.00
Water Reclamation:		
Inspection Fee - Per Hour	\$57.50	\$55.75
Inspection Fee - Per Hour- Overtime	\$86.00	\$83.75
Testing/Laboratory Fee	Actual Cost	Actual Cost
Industrial Pretreatment Program (IPP) Application	\$240.00	\$233.00
Industrial Pretreatment Program (IPP) Renewal Fee	\$92.00	\$89.00

BE IT FURTHER RESOLVED that the fee schedule for administrative fees, service charges and penalties will be 1.5 times the above amounts for outside-City users.

BE IT FURTHER RESOLVED that the Board is authorized to negotiate contracts with water and sewer system users based upon the above rates and any revision of the above rates shall be subject to Governing Body review, modification and approval.

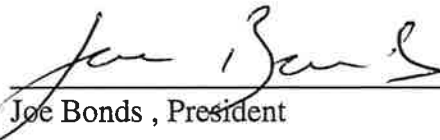
BE IT FURTHER RESOLVED that the foregoing fee schedule for administrative fees, service charges and penalties established by the Board of Public Utilities shall be submitted to the Governing Body for approval and filing as provided by Code of the City of Cheyenne.

ADOPTED this 5th day of May, 2014.

BOARD OF PUBLIC UTILITIES

(SEAL)

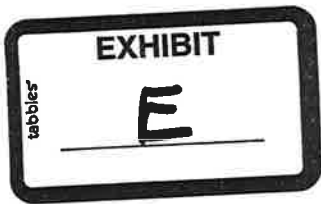
By:


Joe Bonds, President

By:


Barbara Rogers, Secretary

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Approved as to
form only:
JHR
Date: 4-28-14

BOPU RESOLUTION NO. 2014- 08

ENTITLED: "A RESOLUTION ADOPTING REVISIONS TO THE SEPTIC WASTE DUMP AND COMMERCIAL WASTE RATES TO BE CHARGED TO USERS OF THE CHEYENNE WATER AND SEWER SYSTEM."

WHEREAS, the Board of Public Utilities ("Board") is authorized by State Statute and City Code to set rates, fees and penalties for water and sanitary sewer services furnished to customers to:

- (a) Pay for the operation and maintenance of the sanitary sewer system, including salaries, wages and benefits, and the cost of all materials and supplies necessary for repairs, replacements and upgrades to the system;
- (b) Pay interest charges and principal payments on all outstanding sewer loans and bonds as they are due;
- (c) Cover all miscellaneous expenses;
- (d) Cover all usual extensions and enlargements, together with a reasonable allowance for emergency and unforeseen expenses; and
- (e) Provide and maintain a depreciation fund for the sewer department;

WHEREAS, the Board has determined that an increase in the Septic Waste Dump and Commercial Waste rates are necessary to ensure adequate revenue is generated in order to pay for costs associated with those services rendered;

WHEREAS, the Governing Body of the City of Cheyenne, pursuant to Ordinance 3975, adopted June 10, 2013, requires that prior to the beginning of each fiscal year, the Board will calculate new septic waste dump rates and commercial waste rates based on the Bureau of Labor Statistics, Consumer Price Index, All Urban Consumers, Water and Sewer Maintenance and the Wyoming Cost Living Index – Southeast Region and prepare a new septic waste dump rates and commercial waste rates schedule;

WHEREAS, the Bureau of Labor Statistics, Consumer Price Index, All Urban Consumers, Water and Sewer Maintenance for the calendar year 2013 was 3.86% and the Wyoming Cost of Living Index – Southeast Region for the fourth quarter of 2013 was 3.4%; and

WHEREAS, the 2013 Water and Wastewater Master Plans recommend a 5.5% adjustment to sewer rates in order to adequately fund Operation & Maintenance, Capital Equipment, Infrastructure replacement and improvement, and debt service expenditures.

NOW, THEREFORE, BE IT RESOLVED that the septic waste dump and commercial waste rate schedule will be adjusted by approximately 5.0%.

BE IT FURTHER RESOLVED that the following Rate Schedule for septic waste dump and commercial waste is adopted by the Board, and that it be presented in the form of an ordinance to the Governing Body of the City of Cheyenne for approval, and will become effective on statements rendered, tickets purchased, and on septic and commercial waste delivered on or after the dates indicated:

RATE SCHEDULES

Effective with all tickets purchased and all septic waste and commercial waste dumped on or after the dates indicated:

Septic Waste Dump Rates: For dumping Septic tanks, port a pots, holding tank wastes, and from domestic uses such as toilets, sinks, showers, etc.

For the dumping of zero (0) to one hundred (100) gallons of septic tank waste.

	Price Per		Price Per
<u>Effective Date:</u>	<u>Ticket</u>	<u>Effective Date:</u>	<u>Ticket</u>
January 1, 2015	\$ 9.18	January 1, 2014	\$8.75

For the dumping of zero (0) to five hundred (500) gallons of septic tank waste.

	Price Per		Price Per
<u>Effective Date:</u>	<u>Ticket</u>	<u>Effective Date:</u>	<u>Ticket</u>
January 1, 2015	\$ 41.79	January 1, 2014	\$39.80

Septic Dump tickets are sold in books of ten, based upon the above rates, and are non-refundable. Tickets are for dumping of 0 to 500 gallons or for 0 to 100 gallons of septic tank waste.

Grease Trap Waste: Hauled waste from grease traps, including organic fats, oils and greases from food preparation activities.

For the dumping of zero (0) to one hundred (100) gallons of grease trap waste.

	Price Per		Price Per
<u>Effective Date:</u>	<u>Ticket</u>	<u>Effective Date:</u>	<u>Ticket</u>
January 1, 2015	\$ 10.90	January 1, 2014	\$10.40

For the dumping of zero (0) to five hundred (500) gallons of grease trap waste.

	Price Per		Price Per
<u>Effective Date:</u>	<u>Ticket</u>	<u>Effective Date:</u>	<u>Ticket</u>
January 1, 2015	\$ 49.10	January 1, 2014	\$46.80

Grease Trap Waste tickets are sold in books of ten, based upon the above rates, and are non-refundable. Tickets are for dumping of 0 to 500 gallons or for 0 to 100 gallons of Grease Trap Waste.

Hauled Non-hazardous Process Waste: Commercial process waste treated separately from other Board waste processes.

Rate per 0 to 500 Gallons:

	Price Per		Price Per
<u>Effective Date:</u>	<u>Ticket</u>	<u>Effective Date:</u>	<u>Ticket</u>
January 1, 2015	\$ 66.15	January 1, 2014	\$ 63.00

Liquid Commercial Waste Tickets: Non-hazardous commercial waste, such as sand trap and oil water separator wastes.

For dumping 0 to 100 lbs
of liquid commercial waste

	Price Per
<u>Effective Date:</u>	<u>Ticket</u>
July 1, 2014	\$ 10.00

For dumping 0 to 100 gallons
of liquid commercial waste.

	Price Per
<u>Effective Date:</u>	<u>Ticket</u>
January 1, 2014	\$ 103.00

Liquid commercial waste tickets are sold individually based upon the above rates and are non-refundable. One ticket is for dumping of 0 to 100 pounds of liquid commercial waste.

BE IT FURTHER RESOLVED that the Board is authorized to negotiate contracts with septic waste dump and commercial waste users, based upon the above rates, and any revision of the above rates shall be subject to Governing Body review, modification and approval.

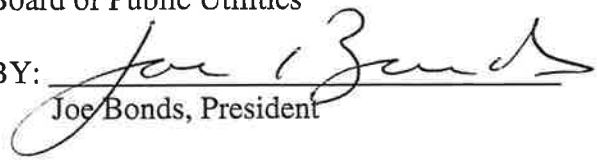
BE IT FURTHER RESOLVED that the rates for Septic Waste Dump Tickets and/or Commercial Waste Tickets for outside City users will be 1.5 times the above rates.

BE IT FURTHER RESOLVED that the Board has the option of either billing septic tank haulers or requiring them to purchase septic waste dump tickets.

BE IT FURTHER RESOLVED that the septic waste dump and commercial waste rates established by the Board be submitted to the Governing Body of the City of Cheyenne for approval and filing as provided by the Code of the City of Cheyenne, Wyoming.

ADOPTED this 5th day of May, 2014

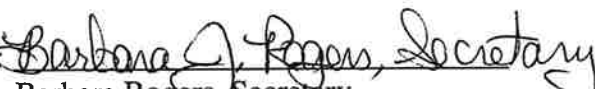
Board of Public Utilities

BY: 

Joe Bonds, President

(SEAL)

ATTEST:

BY: 
Barbara Rogers, Secretary